

Krishna v. State of U.P. — pending objections to theft provisional assessment under Clause 6.8

Allahabad High Court · Division Bench · 13 January 2023 · WRIT - C No. - 40397 of 2022 · **Objections to the theft provisional assessment to be decided under Clause 6.8; no coercive action until final assessment.**

HEADNOTE

Where consumers had already objected to a notice of provisional assessment in a theft-of-electricity case, the writ was disposed of by directing the assessing officer to decide those objections following Clause 6.8 of the Electricity Supply Code, 2005, and staying coercive action until a final assessment order is passed.

FACTUAL SUMMARY

The petitioners, Krishna and another, challenged a 19 August 2021 notice issued by the Executive Engineer, Vidhut Vitran Khand, Shahganj, Jaunpur, described as a notice of provisional assessment in a case of theft of electricity. They had filed objections to that notice. Counsel for the petitioners sought a direction that the objections be decided by a speaking order. Counsel for the distribution licensee stated that the objections would be decided before any action was taken in the matter.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

pending objections to provisional assessment — reasoned disposal with stay

HOLDING

The writ was disposed of directing respondent No. 3 to decide the petitioners' already-filed objections to the notice of provisional assessment (issued in a theft-of-electricity case) by following the procedure prescribed under Clause 6.8 of the Electricity Supply Code, 2005, and providing that until a final assessment order is passed, no coercive action shall be taken against the petitioners. ¶ 1

FLAG 6.8-applied-to-theft-assessment

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Objections already filed against the provisional assessment notice were directed to be decided under Clause 6.8, with coercive action stayed until final assessment. ¶ 1

pending-objection-to-theft-assessment-6.8 The impugned notice was a provisional assessment in a theft-of-electricity case; the Court still channelled the pending objections through Clause 6.8. ¶ 1

6.8-procedure-mandatory Respondent No. 3 was directed to decide the objections by following the procedure prescribed under Clause 6.8. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT PROVISIONAL ASSESSMENT AND OF THE OBJECTIONS

The Court did not examine the assessment or the objections; it only directed Clause 6.8 disposal with a stay of coercive action. ¶ 1

